



POLICE DEPARTMENT

July 30, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Frank Martinez
Tax Registry No. 911451
Bronx Court Section
Disciplinary Case No. 86253/10

The above-named member of the Department appeared before me on July 8, 2010, charged with the following:

1. Said Police Officer Frank Martinez, while assigned to Bronx Central Booking, on or about and in between December 24, 2007 and February 21, 2008, did endanger the welfare of a child by knowingly acting in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old in that during the above-dates, Police Officer Martinez stored his loaded service firearm, Serial# [REDACTED], on a shelf in a closet in the child's bedroom, without a safety mechanism, approximately three feet away from the child's bed.

NYS Penal Law Section 260.10(1) – ENDANGERING THE WELFARE OF A CHILD

The Department was represented by Rita Bieniewicz, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

COURTESY • PROFESSIONALISM • RESPECT

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Louis Lastres as its witness.

Sergeant Louis Lastres

Lastres is an investigator for the Transit Bureau investigating allegations of misconduct against members of the service. He previously held the same position with the Criminal Justice Bureau (CJB). In January 2008, while at CJB, he was assigned to investigate a matter involving the Respondent which had been the subject of a "call out" in December 2007.

After reviewing the file, Lastres set up interviews with the complainant and the Respondent. He spoke with [REDACTED] the Respondent's wife, at her residence. At the time she was living with the Respondent and her [REDACTED] year old daughter [REDACTED]. During the interview, Celi mentioned that the Respondent secured his firearm in the child's bedroom at times.

Lastres described the bedroom as small, like a walk-in closet, approximately 10 feet by 12 feet. There was a child's bed and some type of shelving against the wall. The shelves were open and about five feet in height and clothing was kept there. The shelving unit was approximately two to three feet from the bed. There was no firearm in the room at the time and the Respondent was not present.

In February 2008, Lastres interviewed the Respondent. The Respondent confirmed that he secured his firearm in the shelves. At times the firearm would be loaded and at other times unloaded. The Respondent told Lastres that he sometimes wrapped the firearm in clothing. Lastres was not sure if the Respondent said he stored the weapon on the second or third shelf but believed the Respondent said the third shelf.

The Respondent told him that he did not store his firearm, a Glock, in a safe. The Respondent did not have a safe or a locking mechanism for the firearm either. The Respondent told Lastres that the child sometimes sleeps in that bedroom and at other times in bed with him and his wife.

Lastres instructed the Respondent to purchase a safe or some type of locking mechanism for the firearm before bringing it home again. He gave the Respondent other options for storing the firearm by telling him he could secure it at his command or the local precinct.

Explaining why he did this, Lastres stated:

Well, Department policy dictates that we secure our firearms in a safe place with a locking mechanism to render the firearm safe. Plus he lives with other people in the house. So I just felt it would be appropriate and for the small child, the [REDACTED] year old in the house, I just felt that it wasn't a safe condition for the child.

Lastres testified that he instructed the Respondent to provide proof that he was storing his firearm in a different manner. The following day, the Respondent faxed him a receipt indicating that he had purchased a safe.

As to further action he took, Lastres said he informed his supervisors, did a conferral with the Department Advocate's office and notified the Administration for Children's Services (ACS).

Also during his interview with the Respondent, the Respondent told him that he had a procedure in which he allowed his children to handle his firearm after he had secured it, to take the curiosity out of the child. He specifically said that he allowed [REDACTED] to handle the firearm. Lastres said he told the Respondent not to do this because it was unauthorized.

On cross-examination, Lastres agreed that the interview with [REDACTED] was on January 21, 2008. He did not take pictures of where the gun was stored. He agreed when he was there, the firearm was not present. After his interview with the Respondent he did not go back to the house to see where the Respondent said he stored the firearm.

Lastres did not modify the Respondent and he was allowed to keep his gun. Lastres provided a receipt for the safe the next day. He did not go over to the house to confirm that the Respondent had a safe because he felt the receipt was sufficient proof. He agreed that after receiving the receipt, he was satisfied that the Respondent was in compliance.

Sometime later, Lastres called the Respondent's wife to ask her if there had been any further issues with respect to the domestic incident and also asked her about the gun situation. She advised him that the Respondent was in compliance.

Lastres confirmed that there were no disciplinary charges stemming from the domestic incident that was the initial call out and that the Respondent's duty status did not change. He agreed that there was no complaint about the firearm in the first call out.

Lastres referred the matter to the Administration for Children's Services (ACS) in December 2008. He agreed that this referral occurred after he was satisfied that the Respondent was in compliance with Department rules for storing his firearm. ACS

advised him that they did not see any imminent danger and there was nothing for them to investigate.

Lastres stated that he had requested that the Respondent be charged with failure to safeguard the weapon. Lastres never reviewed the Respondent's case with the District Attorney's office nor did he discuss the possibility of arresting the Respondent with the District Attorney.

Lastres agreed that the Respondent claimed he was taught that it was a good idea to demystify the gun for a child. He said the Respondent had said he unloaded the firearm and let his children handle it to take the curiosity away. Lastres testified that he had never heard of this tactic of demystifying the gun.

On re-direct examination, Lastres testified that it was his understanding that the ACS investigation ended because when they visited the home, the Respondent's firearm was being stored in a safe.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent has been a member of the service for 18 years and is on full duty status. On December 24, 2007, he called 911. Other than the current charges no other charges arose from the incident which led to him calling 911. He was interviewed that night and his duty status was never changed.

The Respondent was interviewed again on February 21, 2008. He had been living

in a small one bedroom apartment in the Bronx with his wife [REDACTED] and her daughter [REDACTED] who was [REDACTED] years old. During that interview he was asked about how he stored his gun. He had never been questioned about this before.

In his apartment, the Respondent explained that there is a small walk-in closet with three shelves on the wall. With respect to how he previously stored his weapon, it was sometimes loaded but always holstered and stored inside his clothing on the top shelf. Although the Respondent stated that he is 5' 10" tall, he had to utilize a small step ladder in order to access this top shelf.

The Respondent completed the Police Academy in 1992 and has received additional training since then on safeguarding his firearm. He explained that he was only told to make sure that his firearm is safe. He was never told about it having to be stored inside of a box. He was just told to keep it safe and away from people. The Respondent asserted that no one possessed his gun without his knowledge prior to the date of this incident.

Aside from [REDACTED], the Respondent has three other children. [REDACTED] [REDACTED]. He lived with them when they were smaller and there was never an incident when they were able to obtain his firearm against his wishes. He never let them hold a loaded firearm.

Describing the room where he formerly stored his weapon, the Respondent likened it to a closet which was large enough to put a small futon inside for [REDACTED]. He explained that she did not sleep in that room all the time. During the night, he and his wife would bring her in there for a couple of hours and then return her to their room. Most of the time, however, [REDACTED] slept with them.

The Respondent testified that [REDACTED] did not have access to the firearm. He said she is very small and could not even reach the first shelf. He testified that the only way she could get to the shelf with the gun was if she was "superman." In the absence of her being "superman," the Respondent said, he was very satisfied that there was no way she could get to the firearm. There was never an issue, he testified, where she got near the firearm.

The Respondent admitted that he had a practice in which he would unload the weapon and while holding it he would tell his children, "This is daddy's gun. This is not a toy gun." He said he would show them the bullets and tell them, "This can kill you." He said he let them look at it and ask questions and would then put it away. He claimed he got the idea to do this at the range from the instructors. The Respondent said he understands that there have been a few cases in which children of police officers have gotten shot to death. The Respondent said he loves his children and thought this was the proper thing to do and that he had been told it was all right to do.

Asked if he did this with [REDACTED], the Respondent testified that he did not know but admitted he probably did. He said she was only [REDACTED] and at that age she would not understand. He would never let her hold the firearm while it was loaded.

The Respondent stated that he was never arrested on this endangerment charge and as far as he knows there was no criminal investigation. He said that was unaware that he needed to store the gun in a box. The day after his interview, he purchased a box which locks where he now stores his firearm.

A year after this incident, ACS went to the Respondent's house. He explained that it had been a year since the incident and the investigator was curious as to why they

got the call at that point in time. The Respondent said he was completely cooperative with the investigator who talked to his children, his wife, and looked at the house before leaving. ACS took no action against him.

On cross-examination, the Respondent agreed that safeguarding firearms is always discussed at the range. He acknowledged there is always a Power Point slide presentation. The instruction, he agreed, includes a discussion of safes and locking mechanisms. He was aware that these items could be purchased. The Respondent stated that he had a locking mechanism but it was not the one Lastres had been talking about.

The Respondent testified that when he came home from work, he kept his gun in a holster. He worked 16 hours almost every day in Criminal Court and was sometimes so tired that he just wanted to lie down. On those days, he kept the gun loaded inside his holster and put it on the top shelf. The Respondent denied that the room was [REDACTED] bedroom. He said she slept with them. He denied that there was a bed in the room and said it was only a futon, which looks like a bed but is not..

The Respondent said that he usually kept the door closed because it is really just a walk-in closet and he kept his gun in there. He said [REDACTED] was not allowed in that room. He testified that only during the night, when he and his wife wanted to be alone for a few hours, did they put the baby in that room.

He said there were no doors or enclosures for the shelf. He noted that there was a door to the closet. He described the distance from the shelves to the bed as being eight to nine feet. He agreed that during his interview with Lastres on February 21, 2008, he probably said the distance was three feet. There was no partition between the bed and the shelves.

The Respondent was asked: "If that gun were to fall out of the closet was there anything present in the room that would block it from hitting that bed?" The Respondent answered that the two bottom shelves stick out more than the top shelf. He said the top shelf was about a foot wide and the two lower shelves were about two feet wide.

Explaining why he sometimes left the gun loaded on the shelf the Respondent stated: "Central Booking in the Bronx, they are short personnel, and it's normal that we work 12 16 hour tours. Sometimes when I get home early in the morning, just finish doing a midnight and 4 to 12, I am very tired and the only thing I want to do is go to sleep because two hours later I have to go back to work. What I do is rush into my house, take a bath, put my gun away and go to bed."

The Respondent stated that [REDACTED] knows that he is a police officer and that he carries a firearm. She has seen him in uniform with a firearm.

He described the step ladder as being about three or three and a half feet. He agreed that it was his testimony that he had to step on the ladder to store his firearm on the shelf.

FINDINGS AND ANALYSIS

The facts in this case are not in dispute. On December 24, 2007 the Respondent called 911 on a domestic violence complaint because, he alleged, his wife slapped him. No arrest was made nor was any disciplinary action taken at that time.

About a month after the initial incident, Lastres, who had been assigned to investigate the matter, conducted an interview with the Respondent's wife at the Bronx apartment shared by the Respondent, his wife and her [REDACTED] year old child. Lastres learned

that the Respondent stored his firearm on a shelf on the wall of a walk-in closet that was used, part of the time, as a bedroom for the [REDACTED] year old.

The Respondent was interviewed and he admitted to storing his weapon in this fashion. Lastres told him the weapon had to be stored in a safe and the next day the Respondent presented a receipt indicating that he had purchased a safe and was now storing his gun in it.

In December 2008, approximately one year after the initial event, the investigation was closed. The Administration for Children's Services (ACS) was notified and Departmental charges were requested. ACS closed out its case, apparently satisfied that the gun was secure.

The Respondent is charged with one count of Endangering the Welfare of a Child pursuant to Penal Law § 260.10. This charge was served on the Respondent after the statute of limitations had passed. The Respondent argues that the proper charge here is the administrative charge of failure to safeguard a weapon. He contends that because that charge was time barred he finds himself charged with criminal conduct, which is not subject to the time limit for filing charges. The Department contends that it contemplated serving the endangering charge all along.

Whatever the intent and whatever the cause, there is one specification involving alleged criminal misconduct.

Penal Law § 260.10 provides, in pertinent part, that "a person is guilty of endangering the welfare of a child when he knowingly acts in a manner *likely to be injurious* to the physical, mental or moral welfare of a child less than seventeen years old," (emphasis added).

On the issue of the endangering statute and how it relates to the storage of guns this State's highest court has spoken and provided clear guidance. People v. Hitchcock and People v. Duenas, 98 N.Y.2d 586 (2002) is a decision distinguishing two cases involving gun tragedies in which the court explains the application of the endangering statute.

In the Hitchcock case the defendant stored 23 firearms in his home. Virtually all of them were openly accessible. Five of these were kept in plain view with ammunition readily available. There was also evidence that a child or children had moved the weapons before the incident. The court concluded that: "Based upon the confluence of events and circumstances, the jury could reasonably have inferred that defendant knowingly possessed and stored his guns in a manner likely to be injurious to the welfare of the children living in his home and their child guests."

In the Duenas case the defendant possessed an illegal handgun. This gun was hidden away in his bedroom. Unknown to him, his eleven year old brother, "peering through a crack in the bedroom door" saw him cleaning the gun. When the defendant was not home the child searched for and found the gun. It went off killing another child.

The court concluded that the endangering statute did not apply even though the gun was stored in the house. The court noted that the defendant did not know his brother knew about the gun and a significant effort was made to conceal it. In dismissing the case the court observed: "to hold otherwise would approximate establishing per se liability based on ownership of a gun at home and injury to a child, which exceeds the intended scope of the endangering statute."

Although the facts here are different they are clearly closer to Duenas than

Hitchcock.¹ The Respondent made reasonable efforts to keep the gun away from the [REDACTED] year old child. He gave uncontested testimony that he had to use a small step ladder to get the gun up on the shelf where he kept it. He also gave uncontroverted testimony that the gun was out of the young child's reach and that she could not get near it.²

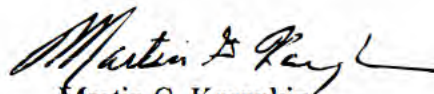
In its analysis of the endangering statute the court in Hitchcock/Duenas explained that a prosecutor must establish not only that a defendant was aware of the possible harm to a child but must also "establish that the harm was likely to occur and not merely possible."

There is not a scintilla of evidence in this case that any harm was *likely* to occur. The best demonstration of this is found in the Department's closing argument where the Advocate provided vague speculation about how harm might have occurred to the child.

There is no doubt that the Respondent failed to safeguard his weapon pursuant to Department rules and policy, but that charge is not before this Court. The charge that is before this Court, Endangering the Welfare of a Child pursuant to Penal Law § 260.10, was not established as matters of law or fact. The Respondent is found Not Guilty.

APPROVED
OCT 26 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner Trials

¹ Although not legally significant, the truly important difference between this case and both of those cases is that no one was hurt. In the Duenas and Hitchcock cases the criminal action commenced when a child was shot.

² The specification alleges that the gun was stored three feet from where the child slept. This does not accurately reflect the situation. Lastres testified that the shelving unit was two to three feet from the bed. The three feet figure does not take into account the distance, in height, from the bed to the gun.